

Re: [REDACTED] Public Information Act request to Colorado County dated January 29, 2026 regarding [REDACTED]

From: [REDACTED]
To: j.mcvey@allison-bass.com, jay.johannes@co.colorado.tx.us, carolyn.olson@co.colorado.tx.us, ty.prause@co.colorado.tx.us
Date: February 14, 2026 02:29 UTC

February 14, 2026

VIA EMAIL

J. Eric Magee Allison, Bass & Magee, L.L.P. 1301 Nueces Street, Suite 201 Austin, Texas 78701 e.magee@allison-bass.com

**RE: Impending Charging Decision Regarding [REDACTED];
Prosecutorial Conflict of Interest and Demand for Recusal**

Your Client: Colorado County Attorney's Office Matter: [REDACTED]
— January 19, 2026 Incident

Dear Mr. Magee:

This correspondence serves as a formal notice regarding the profound legal and ethical duties that must guide any charging decision arising from the January 19, 2026 incident at the Colorado County Jail involving my wife, [REDACTED]. As counsel for Colorado County, you are hereby directed to advise your client, the Colorado County Attorney's Office, of its obligations under state and federal law before any further prosecutorial action is taken.

I. THE PROSECUTOR'S DUTY IS TO SEEK JUSTICE, NOT MERELY TO CONVICT

The Supreme Court has long held that a prosecutor "is the representative not of an ordinary party to a controversy, but of a sovereignty whose obligation to govern impartially is as compelling as its obligation to govern at all; and whose interest, therefore, in a criminal prosecution is not that it shall win a case, but that justice shall be done." *Berger v. United States*, 295 U.S. 78, 88 (1935).

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This duty is codified in Texas Disciplinary Rule of Professional Conduct 3.09, which mandates that a prosecutor "shall refrain from prosecuting a charge that the prosecutor knows is not supported by probable cause" and shall "make timely disclosure to the defense of all evidence or information known to the prosecutor that tends to negate the guilt of the accused or mitigates the offense." Prosecuting Mrs. [REDACTED], the evident victim in this matter, would be a direct contradiction of this fundamental duty.

II. OBJECTIVE EVIDENCE CONCLUSIVELY IDENTIFIES

[REDACTED] AS THE VICTIM

Your client's own official records establish that Mrs. [REDACTED] was the victim of a serious assault. The Colorado County EMS Incident Report (No. 260119-2236-COLORADO) documents the cause of her injuries as "**Police/Jail.**" That same report confirms she was attempting to take her medication, not refuse it, stating she:

- "Stated she wanted to 'look at the bottles'"
- "Reached for her bag of medicine"

As a direct result of the actions of jail staff, Mrs. [REDACTED] sustained a Traumatic Brain Injury (TBI), loss of consciousness, a hematoma to the posterior of her head, loss of bladder and bowel control, and cardiac irregularities requiring emergency treatment.. The jail administration failed to render aid, requiring me to independently call dispatch—a call placed 83 minutes after the assault.

These are not the injuries of an aggressor; they are the documented injuries of a victim who suffered a life-threatening assault at the hands of government officials. To suggest she is the culpable party is an affront to the objective facts.

III. PROSECUTING THE VICTIM CONSTITUTES UNLAWFUL RETALIATION

The assault on Mrs. [REDACTED] occurred on January 19, 2026—the very day I transmitted a formal litigation hold notice to the County in anticipation of civil rights litigation. Since that time, in the exercise of our constitutional rights, I have filed multiple Public Information Act requests, a federal Inspector General complaint (Treasury OIG Case No. 00475089), and a formal Notice of Claim under the Texas Tort Claims Act.

As the Supreme Court recently clarified in *Gonzalez v. Trevino*, 602 U.S. ___, 144 S. Ct. 1663 (2024), objective evidence of differential treatment can establish a retaliatory motive, even where probable cause might be manufactured.

Let there be no mistake: if your client prosecutes [REDACTED]—the TBI victim—while simultaneously withholding evidence of the assault via TPIA exemptions and taking no action against Lt. Holly Smith, who caused these injuries, this differential treatment will serve as prima facie evidence of First Amendment retaliation. Such an action would be viewed as a bad-faith attempt to suppress a valid civil rights claim and create improper leverage against Mrs. [REDACTED]'s anticipated lawsuit under 42 U.S.C. § 1983.

IV. THE COUNTY ATTORNEY'S OFFICE HAS AN IRRECONCILABLE AND DISQUALIFYING CONFLICT OF INTEREST

The Colorado County Attorney's Office has an irreconcilable conflict of interest that legally prohibits it from handling this case. The office serves as the legal advisor to the Colorado County Sheriff's Office, the very agency whose employee is the subject of this investigation. It cannot provide counsel to the Sheriff while simultaneously exercising impartial prosecutorial judgment in a matter involving the Sheriff's subordinate.

This conflict is no longer theoretical. First Assistant County Attorney Carolyn Olson and County Attorney Jay Johannes have made themselves **fact witnesses** by personally signing and issuing TPIA responses to withhold evidence related to this investigation. Having participated in the post-incident handling of evidence, they are ethically and legally barred from serving as neutral prosecutors in the same matter.

Under these circumstances, due process and the administration of justice demand the appointment of an independent prosecutor. This is not merely a suggestion; it is a legal necessity under Texas Code of Criminal Procedure Article 2.07 to cure a disqualifying conflict.

V. DEMAND FOR ACTION

Please be advised that the demand for your client's recusal can be rendered moot. If the Colorado County Attorney's Office will stipulate in writing that [REDACTED] is not a target of the current criminal investigation and that no charges will be brought against her arising from the January 19, 2026 incident, we will agree that a motion to disqualify is unnecessary as to

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her interests. This would allow your client to avoid a recusal while confirming they do not intend to prosecute the documented victim.

Absent that stipulation, we demand that you advise the Colorado County Attorney's Office to immediately take the following actions:

1. **Cease and Desist** from any further prosecutorial action against [REDACTED], including any presentation to a Grand Jury;
2. **Recuse** the entire Colorado County Attorney's Office from this matter due to the disqualifying conflict of interest; and
3. **Refer** the complete investigative file to the District Court for the appointment of an independent prosecutor pro tem to evaluate potential charges against all parties, including Lt. Holly Smith.

A prosecutor's duty is to seek justice. Proceeding with the prosecution of a brain-injured victim to protect the public officials who harmed her would constitute a profound act of bad faith and a gross violation of the public trust. I expect you will advise your client to act in accordance with the law.

Respectfully,

/s/ [REDACTED]

Harold "Wayne" [REDACTED]
[REDACTED]. Columbus,
TX 78934 (979) 661-9362 [REDACTED]

cc: Jay Johannes, Colorado County Attorney cc: Carolyn Olson, First Assistant
County Attorney

On Fri, Feb 13, 2026 at 5:22 PM Julia McVey <j.mcvey@allison-bass.com> wrote:

Please let me know if you have any issues opening the attachment. Thank you,

Julia McVey

Paralegal

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